

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Christopher Conway	Team: Squad #15	CCRB Case #: 201507928	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 08/22/2015 11:55 AM, Monday, 08/24/2015 12:00 AM	Location of Incident: Over the phone	18 Mo. SOL 2/22/2017	Precinct: 40		
Date/Time CV Reported Fri, 09/18/2015 1:19 PM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Fri, 09/18/2015 1:19 PM		
Complainant/Victim	Type	Home Address			
Witness(es)	Home Address				
Subject Officer(s)	Shield	TaxID	Command		
1. DT3 Javier Cordero	02796	925117	040 DET		
Officer(s)	Allegation			Investigator Recommendation	
A . DT3 Javier Cordero	Abuse: Det. Javier Cordero threatened to arrest § 87(2)(b)			A . Unsubstantiated	

Case Summary

On September 18, 2015, § 87(2)(b) filed this complaint with the CCRB in person.

On August 17, 2015, § 87(2)(b) filed a complaint with the 40th Precinct for an identity theft that had been perpetrated upon her. On a time and date believed by § 87(2)(b) to be 4:00 p.m. on August 24, 2015 (identified by the investigation as 11:55 a.m. on August 22, 2015), § 87(2)(b) called the 40th Precinct stationhouse and asked who was assigned to her case; she was informed that Det. Javier Cordero of the 40th Precinct Detective Squad was assigned to her case, and was transferred to the detective squad to speak to him. In a phone conversation, Det. Cordero allegedly said to § 87(2)(b) that her case was closed, and that he was going to arrest her (**Allegation A**). § 87(2)(b) did not have any further conversation with Det. Cordero about her case.

Mediation, Civil and Criminal Histories

- This case was deemed ineligible for mediation § 87(2)(b)
- A FOIL request was sent to the New York City Office of the Comptroller on October 30, 2015, seeking if § 87(2)(b) filed a notice of claim in regards to this incident. The response will be included in the case file upon its receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB History

- This is the first complaint filed by § 87(2)(b) with the CCRB (encl. 04 Board Review).
- Det. Cordero has no substantiated allegations against him in his fifteen-year tenure with the New York City Police Department. There are two prior cases in which threat of arrest was an allegation, closed respectively as complainant uncooperative and complaint withdrawn (200502126 and 200602312).

Finding and Recommendations

Recommendations

Allegation A—Abuse of Authority: Det. Javier Cordero threatened to arrest § 87(2)(b)

In her statement (encl. 01 Board Review), § 87(2)(b) described calling the 40th Precinct to ask which detective was assigned to her case; PAA Parson provided her with the phone number for the 40th Precinct Detective Squad and the name of Det. Cordero, which § 87(2)(b) wrote down. § 87(2)(b) was transferred to the above number and spoke to Det. Cordero, who told her that her case was closed because she never submitted receipt for the stolen money. When § 87(2)(b) stated that she did submit receipts, Det. Cordero allegedly said he would arrest her. § 87(2)(b) was upset, and disconnected the call shortly after. Det. Cordero did not say why he would arrest her.

Det. Cordero had no recollection of the specific phone call to § 87(2)(b) on the incident date or any part of the criminal complaint report (encl. 02 Board Review). Det. Cordero explained he had so many cases since August that he cannot remember the details of all of them. However, in the DD5s prepared by Det. Cordero (encl. 03 Board Review), he describes the conversation as asking § 87(2)(b) for documentation to help investigate the case, and § 87(2)(b) stating she

had none. Det. Cordero then closed the case as complainant uncooperative. There was no mention in the DD5s of any threat of arrest or anything that could be construed as a threat.

§ 87(2)(g)

. As such, it is recommended that **Allegation A** be closed as **unsubstantiated**.

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date